ISLAMIC JURISPRUDENCE (FIQH)

Faculty of Islamic Studies
General Education - DIHPE
Dow University Of Health Sciences (DUHS)

DOW UNIVERSITY of HEALTH SCIENCES

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MAJOR SCHOOLS OF ISLAMIC JURISPRUDENCE

&

SIGNIFICANCE AND PRINCIPLES OF IJTIHAD

Lecture # 4
Part (02 & 04)

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MAJOR SCHOOLS OF ISLAMIC JURISPRUDENCE

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HANAFI SCHOOL (الحنفي)

- **Founder:** Imam Abu Hanifa al-Nu'man ibn Thabit (699–767 CE)
- **Key Sources:** Qur'an, Sunnah, Ijma', Qiyas, Istihsan (juridical preference), and Urf (custom)
- **Region of Influence:** Turkey, South Asia (India, Pakistan, Bangladesh), Central Asia, the Balkans, parts of Egypt and the Middle East
- **Notable Works:** Al-Fiqh al-Akbar, Al-Mabsut, Hidayah

Key Features:

- Emphasizes **rational reasoning (ra'y)** and **analogy (qiyas)** when textual evidence is ambiguous or absent.
- Known for **flexibility** and wide application of reasoning to suit changing circumstances.
- The **most widely followed** school among Muslims today.

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MALIKI SCHOOL (المالكي)

Founder: Imam Malik ibn Anas

(711–795 CE)

Key Sources: Qur'an, Sunnah, the practice of the people of Madinah (Amal Ahl al-Madinah), Ijma', Qiyas, masalah Mursala (public welfare)

Region of Influence: North Africa (Morocco, Algeria, Tunisia), West Africa (Nigeria, Mali), parts of the Gulf

Notable Works: Al-Muwatta', Mudawwanah

Key Features:

- Unique in its heavy reliance on the **consensus of the early Muslim community in Madinah**.
- Places strong emphasis on **custom ('urf)** and **public welfare (maslahah)**.
- Allows some degree of flexibility while maintaining tradition.

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SHAFI'I SCHOOL (الشافعي)

Founder: Imam Muhammad ibn Idris al-Shafi'i (767–820 CE)

Key Sources: Qur'an, Sunnah, Ijma', Qiyas; defined and structured Usul al-Fiqh (principles of jurisprudence)

Region of Influence: East Africa (Somalia, Kenya), Southeast Asia (Indonesia, Malaysia), parts of Egypt, Yemen

Notable Works: Al-Risalah, Kitab al-Umm

Key Features:

- Established the first formal system of legal methodology (Usul al-Fiqh).
- Prioritizes authentic Hadith and developed strict rules for Hadith classification.
- Provides a balance between textual evidence and rational deduction.

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HANBALI SCHOOL (الحنبلي)

Founder: Imam Ahmad ibn Hanbal (780–855 CE)

Key Sources: Qur'an, authentic Sunnah, very limited use of Qiyas, rejects Istihsan

Region of Influence: Primarily Saudi Arabia and parts of the Gulf (Qatar, UAE)

Notable Works: Musnad Ahmad, Al-Mughni by Ibn Qudamah

Key Features:

- Most conservative of the four Sunni schools.
- Strong emphasis on textual literalism; avoids speculative reasoning.
- Prefers direct application of Hadith over analogy or consensus.
- This school significantly influenced the Salafi and Wahhabi movements.

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OTHER SIGNIFICANT SCHOOLS (NON-SUNNI)
JA'FARI SCHOOL (الجعفري)

Founder: Imam Ja'far al-Sadiq (702–765 CE)
Key Sources: Qur'an, Hadith (especially from Ahl al-Bayt), Ijma', Aql (reason)
Region of Influence: Iran, Iraq, Lebanon, Bahrain, parts of Pakistan and India

Key Features:

- Distinct emphasis on the Hadith transmitted by Imams of the Prophet's family (Ahl al-Bayt).
- Uses reason ('aql) and ijtihad (independent reasoning) more extensively.
- Divided into Usuli (use ijtihad) and Akhbari (rely only on Hadith).

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SUMMARY TABLE

School	Founder	Methodology	Region
Hanafi	Abu Hanifa	Reasoning, analogy, juristic preference	South & Central Asia, Turkey, Balkans
Maliki	Malik ibn Anas	Practice of Madinah, public welfare	North & West Africa
Shafi'i	Al-Shafi'i	Hadith prioritization, structured methods	East Africa, Southeast Asia
Hanbali	Ahmad ibn Hanbal	Textual literalism, limited reasoning	Saudi Arabia, Gulf
Ja'fari	Ja'far al-Sadiq	Hadith of Ahl al-Bayt, reason ('aql)	Iran, Iraq, Lebanon

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SIGNIFICANCE AND PRINCIPLES OF IJTIHAD

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IJTEHAD

- Ijtihad (اجتهاد) Ijtihād, referring to **“independent reasoning”**
- Word of ijtehad is **“Juhd”** which means **“to try or strive”.**
- Ijtihad is the process of independent **reasoning** and **critical thinking** used by Islamic jurists to derive legal rulings from the primary sources of Islamic law, the **Quran and the Sunnah.**
- The significance of ijtihad lies in its role in **adapting Islamic law** to new circumstances and challenges faced by the Muslim community, ensuring that the principles of Islam remain **relevant and applicable** in all times and places.

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CONTINUE ....

- **Ijtihād** or interpretation of Islamic law requires expertise in **Usul al-Fiqh**; without it, no one is qualified to issue rulings.
- A **Mujtahid** is one who possesses deep knowledge of Islamic jurisprudence and its principles.
- The discipline of Usul al-Fiqh gained prominence when unqualified individuals began performing ijtihād, leading to **errors and confusion**, which alarmed the scholars.
- Usul al-Fiqh is vital because the **Ijtihād of a qualified jurist** is binding on the community, guiding Muslims in the application of Shari'ah.

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SIGNIFICANCE OF IJTIHAD

1. SOLVING NEW PROBLEMS:

Ijtihad helps Islamic scholars solve modern-day issues that are not directly mentioned in the Qur'an or Hadith, such as medical ethics, technology, or finance.

2. SUPPORTS REVELATION:

The Qur'an and Sunnah are complete and unchanging, but ijtihad helps us apply their teachings to new situations. It keeps Islamic law alive and relevant in every era.

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3. PREVENTS WRONG JUDGMENTS:

By following the rules of Usul al-Fiqh, ijtihad makes sure that scholars do not give personal or careless opinions. It protects the integrity of Islamic law.

4. REWARDS FROM ALLAH:

The Prophet Muhammad ﷺ said: "If a judge makes a decision with effort (ijtihad) and is correct, he gets two rewards. If he is wrong, he still gets one reward." (Sahih Bukhari & Muslim)

This shows that sincere effort in finding Islamic rulings is always rewarded by Allah SWT.

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PRINCIPLES & CONDITIONS OF VALID IJTIHAD

A person who does ijtihad (called a **Mujtahid**) must fulfill the following conditions:

1. KNOWLEDGE OF ARABIC:

He must understand the Arabic of the Qur'an and Hadith deeply, including grammar, expressions, and style.

2. MASTERY OF ISLAMIC SOURCES:

He must know:

1. **Qur'an**
2. **Hadith (Sunnah)**
3. **Ijma' (Consensus)**
4. **Qiyas (Analogy)**

Other tools like public interest (Maslahah) and custom ('Urf) and etc.

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3. UNDERSTANDING USUL AL-FIQH:

He must be trained in the science of Islamic law-making, including:

- Which evidence comes first
- How to deal with abrogated verses
- How to understand general vs. specific texts

A) WHICH EVIDENCE COMES FIRST

Example:

A verse in the Qur'an permits marrying up to four wives (Qur'an 4:3), while a Hadith narrated in some collections suggests fairness among wives is very difficult. (Qur'an 4:129).

How Usul handles it:

The **Qur'an takes precedence** over solitary Hadith if both cannot be reconciled. Also, if the Hadith is weak or ahad (single chain), it cannot override the Qur'an. Scholars use **priority of sources** to resolve such tensions.

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B) HOW TO DEAL WITH ABROGATED VERSES (NASKH)

Example:

- Early Muslims were forbidden from fighting (Qur'an 2:256 "No compulsion in religion")
- Later, permission and obligation for defensive and even offensive fighting came (Qur'an 9:5 – "Slay the polytheists wherever you find them").

How Usul handles it:

Scholars determine that **verse 9:5 abrogates** (partially or contextually overrides) earlier verses. But some argue it only applies during war. A trained jurist knows **how and when abrogation applies** based on historical context and textual analysis.

C) GENERAL VS. SPECIFIC TEXTS (AMM VS KHAṢṢ)

Example:

- General rule: "Cut the hand of the thief..." (Qur'an 5:38)
- Specific Hadith: "Do not cut the hand of the thief in a time of famine."
- **How Usul handles it:**

  A jurist knows that **specific text qualifies the general one**. So during famine, the general rule of amputation is **not applied**, as the specific context restricts it.

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4. KNOWING THE GOALS OF SHARI‘AH (MAQASID):

He must know that the purpose of Shari‘ah is to protect religion, life, mind, wealth, and family.

This helps him make decisions that fulfill these goals.

A) PROTECTION OF RELIGION (DĪN)

Example:

Allowing Muslims to **pray in congregation online** during a pandemic helped **preserve worship** while protecting health (life). Scholars balanced both goals by **issuing temporary fatwas**.

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B) PROTECTION OF LIFE (NAFS)

Example:

Wearing seatbelts, vaccinations, and public health restrictions during COVID-19 are mandated or encouraged through fatwas based on the goal of protecting life.

C) PROTECTION OF MIND (AQL)

Example:

Islam prohibits intoxicants (Qur'an 5:90) because they harm reasoning and intellect. This prohibition serves the maqṣad of preserving the mind.

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D) PROTECTION OF WEALTH (MĀL)

- **Example:**

  Ban on theft, fraud, and unjust contracts (like interest/usury) is meant to **safeguard people's wealth** and promote fair economic systems.

E) PROTECTION OF LINEAGE/FAMILY (NASL/NASAB)

- **Example:**

  The requirement of **marriage contracts**, rules of **inheritance**, and **severe punishments for adultery** are designed to **protect family structure and lineage clarity**.

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5. FAMILIAR WITH PAST RULINGS:

He should know what earlier scholars and jurists have said and not go against them without strong evidence.

6. PIOUS AND HONEST:

A mujtahid must be God-fearing, sincere, and not seek fame or personal gain. He should admit if he does not know something.

7. AWARE OF TIME AND PLACE:

He should understand the customs and needs of the people he is giving rulings for. A solution for one place may not work for another.

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SUMMARY CHART

Condition	Explanation
Arabic Language	Understand Qur'an & Hadith deeply
Islamic Sources	Qur'an, Sunnah, Ijma', Qiyas, etc.
Usul al-Fiqh	Rules of Islamic law-making
Maqasid	Goals of Shari'ah: justice, welfare, etc.
Juristic Precedent	Know earlier rulings
Piety	Sincerity, humility, honesty
Time & Place	Understand society and its needs

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REFERENCE

- Al-Ghazali, Al-Mustasfa fi Usul al-Fiqh, Vol. 2, Cairo.

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